

evidence since the complaint was filed and defendants' answered, that the amendments in the Proposed FAC open an "entirely new field of inquiry," or if they do require new discovery, that Defendants will not have adequate time to propound discovery to address them. (Opp. pp. 3-4.)

Defendants argue in their opposition, without evidentiary support in the Park Declaration, that the fact witnesses have all been deposed, but Defendants do not argue that they will need to conduct additional depositions of any of those witnesses to address the new allegations in the FAC. Merely having to defend the new claim is not the type of prejudice that warrants denial of leave to amend under California's liberal policy of allowing amendments. (*Compare to Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 486-488 [affirming denial of leave to amend to add claim after the date the case was originally set to go trial, and which would have required new witnesses and discovery].)

9. 9:00 AM CASE NUMBER: C25-00423
CASE NAME: VAUGHN BERNARD VS. GONSALVES & SANTUCCI, INC.
***HEARING ON MOTION IN RE: LEAVE TO FILE 1ST AMENDED COMPLAINT**
FILED BY: GONSALVES & SANTUCCI, INC.
TENTATIVE RULING:

The unopposed motion of Defendant and Cross-complainant Gonsalves & Santucci, Inc. dba the CONCO Companies (CONCO) for leave to file a First Amended Cross-Complaint is granted. CONCO shall serve notice of entry of this order on all parties and must separately file its First Amended Cross-Complaint within 15 days of today's order.

10. 9:00 AM CASE NUMBER: C25-01427
CASE NAME: AUGUST BLASS VS. CAL PRIVATE BANK,
HEARING ON ORDER TO SHOW CAUSE IN RE: WHY SANCTIONS OF \$2,000 SHOULD NOT BE
IMPOSED ON PLAINTIFF'S COUNSEL: JASON W. ESTAVILLO AND ELIZABETH HURWITZ
FILED BY:
TENTATIVE RULING:

Before the Court is its own Order to Show Cause issued to attorneys of record James W. Estavillo (188093) and Elizabeth L. Hurwitz (278846) on May 21, 2026.

The order to show cause stated: